

SERVICE CONTRACT

I. The Parties. This Service Contract ("Agreement") made _____, 20____, is by and between:

Service Provider: _____, with a mailing address of _____ ("Service Provider"), and

Client: _____, with a mailing address of _____ ("Client").

Service Provider and Client are each referred to herein as a "Party" and, collectively, as the "Parties."

NOW, THEREFORE, FOR AND IN CONSIDERATION of the mutual promises and agreements contained herein, the Client hires the Service Provider to work under the terms and conditions hereby agreed upon by the Parties:

II. Term.

The term of this Agreement shall commence on _____, 20____, and terminate: (check one)

☐ - At-Will. Written notice of at least _____ days.

☐ - End Date. On _____, 20____.

☐ - Other: _____.

III. The Service.

The Service Provider agrees to provide the following:

Hereinafter known as the "Service".

The Service Provider shall, while performing the Service, comply with the policies, standards, and regulations of the Client, including local, State, and Federal laws and to the best of their abilities.

IV. Payment Amount.

The Client agrees to pay the Service Provider the following compensation for the Service performed under this Agreement: (check one)

☐ - \$_____ / Hour

☐ - \$_____ / per Job. A "Job" is _____.

☐ - Other: _____.

Hereinafter known as the "Payment Amount".

V. Payment Method.

The Client shall pay the Payment Amount: (check one)

☐ - When Invoiced

- ☐ - Daily
- ☐ - Weekly
- ☐ - Bi-Weekly
- ☐ - Monthly
- ☐ - Other: _____.

The Payment Amount and Payment Method collectively shall be referred to as "Compensation".

VI. Retainer.

This Agreement requires: (check one)

- ☐ - A Retainer. Client agrees to pay a retainer of \$_____ as an advance on future Services.
- ☐ - Retainer is refundable.
- ☐ - Retainer is non-refundable.
- ☐ - No Retainer. The Client is not required to pay a retainer before work commences.

VII. Inspection of Services.

Any Compensation shall be subject to the Client inspecting the completed Services of the Service Provider. If any Services are defective or incomplete, the Client shall notify the Service Provider, who shall promptly correct such work within a reasonable time.

VIII. Return of Property.

Upon termination of this Agreement, all property provided by the Client, including but not limited to equipment, supplies, and uniforms, must be returned by the Service Provider. Failure to do so may result in a delay in any final payment.

IX. Time is of the Essence.

Service Provider acknowledges that time is of the essence in regard to the performance of all Services.

X. Confidentiality.

Service Provider acknowledges and agrees that all financial and accounting records, client and customer lists, and any other data related to the Client's business is confidential ("Confidential Information") and shall not be disclosed during or after the term of this Agreement without prior written consent of the Client.

XI. Taxes.

Service Provider shall pay and be solely responsible for all withholdings, including Social Security, State unemployment, State and Federal income taxes, and any other applicable tax obligations arising from the Services performed.

XII. Independent Contractor Status.

Service Provider acknowledges that he/she/they are an independent contractor and not an agent, partner, joint venturer, nor an employee of the Client. Service Provider shall have no authority to bind or obligate the Client in any manner.

XIII. Safety.

Service Provider shall, at their own expense, be solely responsible for protecting all persons from risk of death, injury, or bodily harm arising from the Services or the Work Site. Service Provider shall comply with all OSHA regulations and applicable federal law.

XIV. Governing Law.

This Agreement shall be governed by and construed in accordance with the laws of the State of _____.

XV. Additional Terms & Conditions.

XVI. Entire Agreement.

This Agreement constitutes the entire agreement between the Parties and supersedes all prior contemporaneous agreements, representations, and understandings. No supplement, modification, or amendment shall be binding unless executed in writing by all Parties.

Client's Signature _____ **Date** _____

Print Name _____

Service Provider's Signature _____ **Date** _____

Print Name _____